

Divisional Engineer, Electricity Distribution Division-I v. Raman Singh & Another

Allahabad High Court · Single Judge · 29 August 2018 · WRIT - C No. 29001 of 2018 · **Writ petition dismissed (Permanent Lok Adalat compensation upheld)**

HEADNOTE

For a consumer's electricity dispute, the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are a comprehensive code, and the jurisdiction of the civil court is expressly barred by Section 145 of the Act. But a claim by a member of the public for damages caused by the licensee's fault — here, livestock electrocuted by a snapped 11 KV line — is not a consumer/Code matter: 'supply of power' is a 'public utility service' under Section 22-A of the Legal Services Authorities Act, 1987, so such a claim falls within the jurisdiction of the Permanent Lok Adalat, and the CGRF/Ombudsman Regulations, 2007 (which cover only consumer grievances) do not apply. Electricity distribution being a hazardous activity, the licensee is under a duty to maintain its lines.

HOLDING-UNITS

INTERPLAY · EA2003::145

Forum: consumer disputes (Code/civil-court bar) vs a non-consumer's tort claim (Lok Adalat)

QUESTION

Does the Permanent Lok Adalat have jurisdiction over a non-consumer's claim for damages for electrocution of livestock by the licensee's line, or is it barred by the Electricity Act / Supply Code scheme?

HOLDING

For a consumer's dispute, the Act and the Supply Code are comprehensive and civil-court jurisdiction is barred by Section 145. A non-consumer's claim for tort damages against the licensee is not a Code/CGRF matter; 'supply of power' is a 'public utility service' under Section 22-A of the LSA Act, 1987, so the Permanent Lok Adalat has jurisdiction, and the CGRF/Ombudsman Regulations, 2007 (covering only consumer grievances) do not apply. The compensation award is upheld. ¶ [the jurisdiction discussion \(unnumbered order\)](#)

LIMITING FACTS

An unattended snapped 11 KV line electrocuted the claimant's buffalo (his livelihood); the claimant was not a consumer; the licensee stalled even the admitted compensation for ~3 years on a jurisdiction plea.

PRINCIPLE TAGS

code-forum-not-for-tortious-damages The Supply Code and its CGRF/Ombudsman forum cover consumer grievances, not a non-consumer's tort-damages claim against the licensee; such claims lie before the Permanent Lok Adalat as a public-utility-service dispute. Lead authorities: *Bar Council of India v. Union of India* [56328920], *S.N. Pandey v. Union of India* [1831524].

¶ [unnumbered order](#)

hazardous-activity-strict-duty Electricity distribution is a hazardous activity; the licensee is under a statutory duty to maintain its installations and lines so that passers-by (human or animal) are not harmed. Lead authorities: *Shakuntala Devi v. Delhi Electric Supply Undertaking* [734012]. ¶ [unnumbered order](#)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Bar Council of India v. Union of India</i> (2012) 8 SCC 243 [56328920] Supreme Court	Permanent Lok Adalats under Chapter VI-A of the LSA Act, 1987 have jurisdiction over disputes concerning public utility services (including supply of power) up to a pecuniary limit, in addition to and not in derogation of other fora,	Relied on to sustain the Permanent Lok Adalat's jurisdiction. ¶ unnumbered order	Court	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
	before the dispute is brought to a court.			
<i>S.N. Pandey v. Union of India</i> (2012) 8 SCC 261 [1831524] Supreme Court	Upholds the validity of the Permanent Lok Adalat mechanism for deciding disputes involving public utility services as an alternative dispute-resolution forum.	Relied on in support of the Lok Adalat's adjudicatory jurisdiction. ¶ unnumbered order	Court	Relied on
<i>Smt. Shakuntala Devi v. Delhi Electric Supply Undertaking & Ors.</i> (1995) 2 SCC 369 [734012] Supreme Court	A statutory electricity authority has a duty to maintain its electric installations and lines in proper condition so as to avoid any threat to the lives of people.	Relied on to fix the licensee's duty and negligence. ¶ unnumbered order	Court	Relied on

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.